

DESERT BASIN SPECIALTY INSURANCE COMPANY
Inland Marine Division
2600 North Central Avenue, Suite 1700, Phoenix, AZ 85004 | NAIC No. 45880

CONTRACTORS EQUIPMENT FLOATER - INLAND MARINE COVERAGE PART
DECLARATIONS AND SCHEDULE OF EQUIPMENT

POLICY NUMBER: IM-2298-66401
POLICY PERIOD: From 05/01/2025 to 05/01/2026 at 12:01 A.M. Standard Time
COVERAGE FORM: DBS-IM 400 (02-25) Contractors Equipment Floater - Scheduled and Unscheduled
RENEWAL OF: IM-2298-66400

NAMED INSURED: Ironbark Constructors, Inc.
ADDITIONAL NAMED INSUREDS:
Ironbark Industrial Services, LLC
Ironbark Equipment Leasing, LLC

MAILING ADDRESS: 7720 West Buckeye Road
Phoenix, AZ 85043

YARD LOCATIONS: (1) 7720 West Buckeye Road, Phoenix, AZ 85043 - main yard and maintenance shop, fenced, lighted, camera monitored, 6.8 acres
(2) 3401 East Elliot Road, Mesa, AZ 85212 - satellite yard, fenced and gated, 2.1 acres

OPERATIONS: Heavy civil and industrial general contractor - data centre, substation, water/wastewater and industrial process construction

LICENCE: Arizona ROC Licence No. B-01 318774
RISK MANAGER: Alina Petrosyan-Ward | (602) 555-0844 | apetrosyan@ironbarkconstructors.example

PRODUCER: Sonoran Ridge Risk Advisors, LLC
Producer Code AZ-8815
Broker Reference: SRR/IM/2025/2298
1 East Washington Street, Suite 1400, Phoenix, AZ 85004
Producer: Desmond Achterberg | (602) 555-0510 | dachterberg@sonoranridgerisk.example

COVERAGE, LIMITS AND TERRITORY

Coverage Territory: The United States of America, its territories and possessions, Canada and Mexico, while the covered property is at a jobsite, at a yard or storage location, in transit, or temporarily elsewhere within the territory.

A. Scheduled Contractors Equipment (see Schedule below)	\$ 8,462,000 total
Maximum limit any one item	As scheduled
Maximum limit any one occurrence, all scheduled items	\$ 6,000,000
B. Unscheduled Equipment - items with a replacement cost of \$ 10,000 or less each, not individually scheduled	\$ 1,000,000 per occurrence
Maximum limit any one unscheduled item	\$ 10,000
C. Small Tools and Hand Tools (blanket)	\$ 250,000 per occurrence
Maximum limit any one tool	\$ 5,000
D. Employee Tools (tools of employees used in the insured's business, owned by the employee)	\$ 50,000 per occurrence
Maximum any one employee	\$ 5,000
E. Rented, Leased or Borrowed Equipment from Others (Includes contractual liability for the rental agreement, including loss of use / rental reimbursement to the owner)	\$ 2,500,000 per occurrence
Loss of Use / Continuing Rental Charges	\$ 10,000 per day, \$ 250,000 any one occurrence
F. Newly Acquired Equipment (automatic, 60 days to report)	\$ 2,000,000 per item
G. Equipment in Transit (owned or non-owned conveyance)	\$ 1,500,000 any one conveyance
H. Property of Others in the Insured's Care, Custody or Control	\$ 500,000
I. Waterborne Transit (barge or ferry, inland waters only)	\$ 250,000
J. Debris Removal / Wreck Removal and Recovery Expense	\$ 500,000 per occurrence
K. Pollutant Cleanup from Fuel, Oil or Hydraulic Fluid Release Caused by a Covered Peril	\$ 250,000 annual aggregate
L. Expediting Expense (air freight and overtime to expedite repair)	\$ 250,000
M. Rental Reimbursement Following a Covered Loss to Owned Equipment	\$ 5,000 per day / \$ 150,000 any one occurrence, 30 day waiting period does not apply; coverage begins 72 hours after loss
N. Employee Dishonesty / Theft by Employees	\$ 100,000 annual aggregate
O. Recharge of Fire Extinguishing Equipment and Fire Dept. Charge	\$ 25,000

MAXIMUM LIMIT ANY ONE OCCURRENCE, ALL COVERAGES COMBINED

\$ 10,000,000

SCHEDULE OF EQUIPMENT (COVERAGE A) - Effective 05/01/2025

Item	Year	Make / Model	Description	Serial / VIN	Limit
001	2023	Caterpillar 349 (hydraulic)	Excavator, 49 t, long reach boom	CAT0349FKMBX2117	\$ 685,000
002	2022	Caterpillar 336 GC	Excavator, 36 t	CAT0336GCLBB9042	\$ 392,000
003	2021	Komatsu PC290LC-11	Excavator, 29 t	KMTPC188K02F7731	\$ 318,000
004	2024	John Deere 850L	Crawler dozer	1T0850LXAPF399514	\$ 512,000
005	2023	John Deere 772GP	Motor grader	1DW772GPCPF701288	\$ 468,000
006	2022	Caterpillar 966M	Wheel loader	CAT0966MEA8K01993	\$ 415,000
007	2020	Volvo A40G	Articulated haul truck	VCEA40GJC0311047	\$ 522,000
008	2020	Volvo A40G	Articulated haul truck	VCEA40GJC0311052	\$ 522,000
009	2023	Grove RT9130E-2	Rough terrain crane, 130 t capacity	GRV9130E23110884	\$ 1,180,000
010	2019	Manitowoc 999	Crawler crane, 250 t, with 180 ft boom and counterweight package	MAN999190211447	\$ 1,760,000
011	2022	Genie SX-180	Telescopic boom lift, 180 ft	GEN180SX22004411	\$ 312,000
012	2021	Genie S-85 XC	Telescopic boom lift	GENS85XC21008827	\$ 96,000
013	2023	JLG 1075	Telehandler, 10,000 lb	JLG1075B23117702	\$ 228,000
014	2022	Wacker Neuson RTLx-SC3	Trench roller (x3 units)	Multiple	\$ 84,000
015	2024	Atlas Copco XAS 1800	Portable air compressor	ACXAS1800240771	\$ 72,000
016	2023	Multiquip DCA400SSVU	Portable generator, 400kw	MQDCA400230419	\$ 138,000
017	2023	Multiquip DCA400SSVU	Portable generator, 400kw	MQDCA400230422	\$ 138,000
018	2022	Vermeer D40x55 S3	HDD directional drill	1VRZ400VXN1001188	\$ 386,000
019	2021	Ditch Witch FX65	Hydro excavation vacuum	CMWFX65TKN0001094	\$ 184,000
020	2024	Trimble / Topcon	GNSS machine control and survey grade equipment (12 rovers, 6 base units)	Multiple units	\$ 96,000
021	2023	Lincoln Electric / Miller	Welding machines and engine drives (18 units)	Multiple	\$ 64,000
022	2022	Custom fabrication	Job trailers, tool cribs and conex containers (14)	Multiple	\$ 110,000
TOTAL SCHEDULED VALUE					\$ 8,462,000

Valuation of Scheduled Equipment: REPLACEMENT COST for items less than five (5) years old at the date of loss; ACTUAL CASH VALUE for items five (5) years or older. Item 010 (Manitowoc 999) is written on an AGREED VALUE basis per End. DBS-AV 415 and the appraisal dated 03/12/2025.

DEDUCTIBLES

Scheduled equipment with a limit of \$ 250,000 or more	\$ 25,000 per occurrence
Scheduled equipment with a limit under \$ 250,000	\$ 10,000 per occurrence
Cranes and Lifting Equipment (Items 009, 010, 011)	\$ 50,000 per occurrence
Unscheduled Equipment, Small Tools and Employee Tools	\$ 5,000 per occurrence
Theft (all coverages)	\$ 25,000 per occurrence
Theft from an unattended, unfenced or unsecured jobsite	\$ 50,000 per occurrence
Rented, Leased or Borrowed Equipment	\$ 10,000 per occurrence
Equipment in Transit	\$ 10,000 per occurrence
Overturn, Upset and Rollover of Cranes and Lifting Equipment	\$100,000 per occurrence
Flood and Earth Movement (where equipment is not in a Special Flood Hazard Area at the time of loss)	\$ 50,000 per occurrence
Windstorm, Haboob and Dust Storm	\$ 25,000 per occurrence

COVERED CAUSES OF LOSS

Risks of direct physical loss of or damage to covered property, except as excluded. Perils insured include: fire, lightning, explosion and smoke; windstorm, hail, haboob, blowing sand and dust; theft, burglary, robbery and attempted theft; vandalism and malicious mischief; collision, overturn, upset, derailment and collapse of a bridge or culvert while the equipment is being transported; collision of the equipment itself while being operated or moved under its own power at a jobsite; falling objects; collapse of a structure,

trench, embankment or excavation in which the equipment is located; landslide and mudslide; flood, rising water and flash flood while the equipment is outside a Special Flood Hazard Area; earthquake; freezing; riot and civil commotion; sinking, submersion and washout; damage arising from the failure of rigging or lifting gear; and the collapse or overturn of a crane, boom lift or telehandler.

EXCLUSIONS

This policy does not cover:

1. Wear and tear, gradual deterioration, rust, corrosion, oxidation, cavitation, erosion, dry rot, inherent vice, latent defect, or the gradual ingress of dust, sand or moisture.
2. Mechanical, electrical, electronic or hydraulic breakdown, failure or derangement, including engine, transmission, final drive, pump, motor, controller and computer failure. However, resulting damage from an ensuing fire, explosion or collision IS covered.
3. Damage to tyres, tracks, undercarriage, cutting edges, ground engaging tools, teeth, augers, drill bits, hoses, belts and other consumable or wear items, unless damaged in the same occurrence as other insured damage to the item, or unless the loss is caused by fire, theft, vandalism or collision.
4. Loss caused by or resulting from overload, overstress, exceeding the manufacturer's rated capacity, or use of the equipment beyond its designed purpose or load chart.
5. Loss caused by improper rigging, lifting or securement, unless a certified rigger or a qualified person as defined by OSHA 1926 Subpart CC directed the lift and a written lift plan was prepared for any lift exceeding 75% of the rated capacity, or any multi-crane, blind or critical lift.
6. Loss to any crane, boom lift or aerial device operated by a person not holding a current NCCCO or equivalent certification for that equipment class.
7. Mysterious disappearance, unexplained loss, or shortage disclosed by taking inventory.
8. Theft from an unlocked and unattended vehicle, trailer or container, or from an open jobsite where the equipment was not immobilised, secured or fenced, unless there are visible marks of forced entry.
9. Loss caused by any dishonest or criminal act of the insured, any partner, officer or director, other than employee theft covered under Coverage N.
10. Voluntary parting with property induced by a fraudulent scheme, trick, false pretense or false documentation, including fraudulent rental, hire or sale.
11. Loss to property while waterborne except as provided under Coverage I.
12. Loss to property leased or rented to others by the insured, unless the insured retains operational control and the property remains at a site under the insured's supervision.
13. Any loss of use, loss of contract, delay, liquidated damages, loss of market or consequential loss, except as provided under Coverages E and M.
14. Loss caused by unlicensed, unauthorised or untrained operation of the equipment.
15. Property while being used in any underground mining operation, tunnelling below 50 feet, marine salvage, or on any body of water other than as provided under Coverage I.
16. Property in a Special Flood Hazard Area (FEMA Zone A, AE, AO, AH, V or VE) at the time of a flood loss, and any loss caused by flood where the equipment was left in a wash, arroyo, drainage channel or below the ordinary high water mark.
17. Automobiles, trucks, tractors, trailers, licensed motor vehicles and any equipment subject to motor vehicle registration and designed principally for highway use. (Insure under a commercial auto policy.)
18. Watercraft, aircraft, unmanned aerial vehicles and drones.
19. Loss to property that is a permanent part of a building or structure, or that is intended to become a permanent part of the insured's construction project. (Insure under a builders risk or installation floater.)
20. War, terrorism (unless elected), nuclear hazard, governmental seizure, confiscation and repossession.
21. Cyber incident, malicious code and loss of electronic data, including telematics and machine control data (End. DBS-CYB 501).

ENDORSEMENTS ATTACHED

DBS-IM 400 (02-25) Contractors Equipment Floater - Scheduled and Unscheduled
DBS-AV 415 (02-25) Agreed Value - Item 010, Manitowoc 999 Crawler Crane
DBS-RENT 420 (02-25) Rented, Leased and Borrowed Equipment including Loss of Use
DBS-RR 425 (02-25) Rental Reimbursement Following Covered Loss to Owned Equipment
DBS-TRAN 430 (02-25) Equipment in Transit and Waterborne Extension
DBS-EMP 435 (02-25) Employee Tools and Employee Dishonesty
DBS-RIG 440 (02-25) Rigging, Lifting and Certified Operator Condition
DBS-SEC 610 (02-25) Jobsite and Yard Security Warranty
DBS-TELE 445 (02-25) Telematics and GPS Tracking Credit Condition
DBS-CYB 501 (01-25) Cyber Incident and Electronic Data Exclusion
DBS-LP 505 (02-25) Loss Payable Provisions
DBS-SL AZ (05-25) Arizona Surplus Lines Notice
DBS-TRIA 900 (01-21) TRIA - Coverage REJECTED

JOBSITE AND YARD SECURITY WARRANTY (DBS-SEC 610) AND TELEMATICS CONDITION (DBS-TELE 445)

SECURITY WARRANTY. The Insured warrants that: (a) all yard locations are fenced to a minimum of six feet, gated and locked outside working hours, illuminated, and monitored by a recorded camera system; (b) at jobsites, all equipment with a scheduled value of \$ 100,000 or more is immobilised outside working hours by removal of the ignition key and engagement of a hydraulic lock-out, wheel lock, or by parking within a secured compound; (c) keys are not left in or on any machine; (d) buckets and attachments are lowered to the ground and boom equipment is retracted and stowed at the end of each shift; and (e) fuel and tool trailers and conex containers are padlocked with a shrouded or hidden-shackle lock.

TELEMATICS CONDITION. A 12.5% premium credit has been applied on the condition that active GPS/telematics tracking is installed, powered and monitored on every scheduled item with a limit of \$ 100,000 or more. The Insured must supply the tracking unit identifier for each such item and must report any tracking unit failure exceeding fourteen (14) days. Where a theft loss occurs on an item whose tracker was disabled, removed or non-functional for more than fourteen (14) days before the loss, the applicable deductible is doubled.

LOSS PAYEES

Item 009 (Grove RT9130E-2) and Item 010 (Manitowoc 999):
 Cordillera Equipment Finance Corporation, 1 Meadowlands Plaza, Suite 1200, East Rutherford, NJ 07073
 Equipment Loan Schedules CEF-2023-0771 and CEF-2019-0442
 Items 007 and 008 (Volvo A40G haul trucks):
 Southwest Machinery Credit, LLC, Lease Schedule SMC-AZ-2020-0338
 Item 018 (Vermeer D40x55):
 Vermeer Financial Services, Contract VFS-2022-118094

CONDITIONS AND CLAIM REPORTING REQUIREMENTS

1. NOTICE OF LOSS. The Insured must report any loss as soon as practicable and within seventy-two (72) hours of discovery, and must not repair, move, dismantle or dispose of damaged equipment before we or our representative have had a reasonable opportunity to inspect, except as necessary for safety or to prevent further damage.
 Desert Basin Specialty - Inland Marine Claims
 equipmentclaims@desertbasinspecialty.example | (844) 555-0902, option 2
2. THEFT LOSSES. Theft, burglary and vandalism must be reported to the police within twenty-four (24) hours of discovery and the incident number provided. The Insured must also (a) supply the last known telematics/GPS position and the tracking history for the 30 days before the loss; (b) supply the equipment purchase invoice or lease agreement, the serial number and photographs; (c) file a report with the National Equipment Register (NER) or equivalent database; and (d) cooperate in any recovery effort.
3. PROOF OF LOSS within sixty (60) days of our request, supported by repair estimates from at least two qualified dealers or the manufacturer's authorised service centre for items over \$ 100,000.
4. RECORDS. The Insured must maintain a current equipment schedule, purchase and maintenance records, daily equipment inspection logs, operator certifications, and lift plans, and produce them on request.
5. PROTECTION OF PROPERTY. The Insured must take all reasonable steps to protect covered property from further loss. Reasonable expenses of recovery, salvage and protection are payable in addition to the applicable limit up to \$ 100,000.
6. OTHER INSURANCE. This policy is excess over any builders risk, installation floater, property policy, or coverage provided by an equipment rental agreement or by the equipment owner.
7. SUIT LIMITATION. Two (2) years from the date of loss.
8. PREMIUM. Annual premium \$ 148,200 after telematics credit, plus Arizona surplus lines tax and stamping fee. Rate: \$ 1.752 per \$ 100 of scheduled value.

Countersigned at Phoenix, Arizona, April 18, 2025.

 Authorised Signatory

 Inland Marine Underwriting Manager